

Jammu and Kashmir Prevention and Control of Infectious and Contagious Diseases in Animals Rules, 2018

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State of Jammu-Kashmir - Act

Jammu and Kashmir Prevention and Control of Infectious and Contagious Diseases in Animals Rules, 2018

JAMMU & KASHMIR

India

Jammu and Kashmir Prevention and Control of Infectious and Contagious Diseases in Animals Rules, 2018

Rule

JAMMU-AND-KASHMIR-PREVENTION-AND-CONTROL-OF-INFECTIOUS-AND-CONTAGIOUS-DISEASES-IN-ANIMALS-RULES-2018 of 2018

Published on 28 February 2018

Commenced on 28 February 2018

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Jammu and Kashmir Prevention and Control of Infectious and Contagious Diseases in Animals Rules, 2018

Published vide Notification No. SRO-114, dated 28.2.2018

SRO-114. - In exercise of the powers conferred by section 43 of the Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009 (Central Act 27 of 2009), the Government of Jammu and Kashmir with the prior approval of Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Jammu and Kashmir Prevention and Control of Infectious and Contagious Diseases in Animals Rules, 2018.

(2)

They shall come into force from the date of their publication in the Government Gazette.

2.

Definitions.

(1)

In these rules unless the context otherwise requires,-

(a)

"Act" means the "Prevention and Control of Infectious Diseases Act, 2009" (Central Act No. 27 of 2009) ;

(b)

"Department" means the "Animal/Sheep Husbandry and Fisheries Department" of State of Jammu and Kashmir ;

(c)

"Director" means the person notified as Director under clause (g) of section 2 of the Act ;

(d)

"Form" means a form appended to these rules ;

(e)

"Section" means a section of the act ;

(f)

"Identification" means identifying the animals by way of ear tagging, tattooing, marking, photographs, microchips etc. or any other suitable system ;

(2)

Words and expressions used in these rules and not defined herein shall have the same meaning as assigned to them in the Central Act.

3.

Manner of inspection and the period of detention at the Check Post or at Quarantine Camp.

(1)

In order to ascertain whether the animal is infected with any of the scheduled diseases, the animal stopped at the check post or detained in the quarantine camp shall be inspected by the veterinarian in charge of the check post or quarantine camp or staff of the department duly authorised for this purpose to rule out the following symptoms :-

(a)

Movement and gait ;

(b)

Whether dull, depressed, normal or exhibiting excited behaviour ;

(c)

Increase in body temperature ;

(d)

Ulcer in mouth, feet or udder ;

(e)

Excessive lacrimation, nasal discharge, or vaginal discharge ;

(f)

Sweating and shivering ;

(g)

Dryness of the skin, alopecia, skin rashes ;

(h)

General weakness, emaciated ;

(i)

Bleeding through natural orifices ;

(j)

Oedema or swelling at dewlap region or any other part of the body.

(2)

The veterinarian in charge of the check post or quarantine station or staff of the department duly authorised for this purpose shall also collect the necessary samples for laboratory examination, if required.

(3)

The veterinarian in charge of the check post or quarantine station or staff of the department authorized for this purpose may detain animals at the check post for a period not exceeding 12 hours for the purpose of inspection, compulsory vaccination and identification or marking etc. For the animal vaccinated at the check post the animal owner shall be given vaccination certificate as required under section 9 of the Act.

(4)

After examination of the animal, the veterinarian in charge or staff of the department duly authorised for this purpose shall either allow entry of the animals in to the controlled area or the free area by issuing an entry permit in Form-A appended to these rules or shall direct to transport the animals to the Quarantine Camp. .

(5)

The cost of examining, vaccinating, ear tagging, the animal or any other activity at the check post shall be fixed by the Director from time to time and shall be borne by the animal owner.

4.

Form of permit to be granted by the veterinarian in charge of the Quarantine Camp or the Staff of Department duly authorized for this purpose.

(1)

The veterinarian in charge of the quarantine camp or staff of the department duly authorised for this propose shall detain the following category of animals :-

(a)

which are suffering from any scheduled disease ; or

(b)

which have come into contact with or have been kept in proximity of animals infected with scheduled diseases ; or

(c)

which are transported by the in charge, of the check post as detailed in sub-rule (4) of rule 3 ; or

(d)

which are the species notified under section 10 of the Act while exiting from the infected area and shall be subjected to a quarantine for a minimum period of fourteen days in a Quarantine Camp.

(2)

The veterinarian in charge of the quarantine camp or staff of the department duly authorised for this propose shall give an official acknowledgment to the animal owner or the person duly authorised by him on his behalf for the animals detained in the quarantine camp. The detention acknowledgment shall be in "Form-B" appended to these rules.

(3)

During quarantine, the animals shall be suitably given identification and shall be marked. Animals shall be examined regularly for any scheduled disease and shall be vaccinated against the scheduled diseases and will be provided with veterinary treatment, if required. If the animals are vaccinated, the animal owner or the person duly authorised by him in this behalf shall be provided with the vaccination certificate as required under section 9 of the Act.

(4)

After successful quarantine, the veterinarian in charge of Quarantine Camp or Staff of the Department duly authorised for this purpose shall release the animals to the owner or person duly authorised by him in this behalf and also grant the Quarantine Release Permit in "Form-C" appended to these rules under his signature. "Form-C" shall also serve as Entry Permit as is required under sub-section (2) of section 15 of the Act.

(5)

The cost of maintenance and vaccination of the animals during the period of Quarantine shall be fixed by the Director from time to time and shall be borne by the animal owner.

Form A

[See rule 3(4)]

Entry Permit

(Issued under

sub-section (2) of section 15, of the Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009.)

Permit No.

.....

All the animals

described below are found free from Scheduled Diseases and on this day_____ are granted entry/exit from/ to the_____ (Name of area) Controlled/eradicated area.

Details of Check Post :

Location :

Animal owner Details :

Name and address of Animal Owner (Full name and complete address, Village, Teshil, District, State and Phone/Mobile No.) :

Name and address of persons accompanying the animals : (Full name and complete address, Village, Tehsil, District, State and Phone/ Mobile No.) :

Animals arrived from (Name of Place from where the animals are arriving i. e. Village, Tehsil, District, State)

:

Animal Details :

Number of Animals :

Identification

No./Tag/Tattoo No. :

Species :

Breed :

Age (completed years) :

Colour :

Vaccination

Certificate details :

(Certificate No. vaccination profile)

Entry Permit Issue Details :

Date of issue :

Signature_____

Place of issue :

Name _____

Official Seal :

Designation_____

Government of Jammu and Kashmir Animal/sheep Husbandry Department

Form-B

[See Rule 4(2)]

Quarantine Camp Custody Acknowledgement.

Certificate No.

All the animal described below have been taken in my custody on this day_____ for a period of 14 days.

Details of Quarantine Camp :

Location (with Block/Tehsil/District) :

Animal Owner Details :

Name and address of animal owner :

Name and address of the person accompanying the

animals :

Animal arrived from :

Animal destined for :

Animal Details :

Number of Animals :

Identification No./Tag/Tattoo No. :

Species :

Breed :

Age (completed years) :

Colour :

Vaccination Certificate details :

(Certificate No. vaccination profile)

Quarantine Camp Custody Acknowledgment
details :

Date of issue :

Signature_____

Place of issue :

Name_____

Official Seal :

Designation_____

Government of Jammu and Kashmir Animal/sheep Husbandry Department

Form-C

[See Rule 4(4)]

Quarantine Release Permit

Permit No.

Quarantine Camp

Custody Acknowledgment No. _____.

All the animal described below are free for
(notified scheduled disease name) and on this day _____
(date) released for the Quarantine and Granted Entry/Exit
from _____ to the _____ (name of area)

Controlled or eradicated area.

Details of Quarantine Camp :

Location (with Block/Tehsil/District) :

Quarantine of Animals from :

_____ to

Animal Owner Details :

Name and address of animal owner :

Animal arrived from :

Animal destined for :

Animal details :

Number of Animals :

Identification No./Tag/Tattoo No. :

Species :

Breed :

Age (completed years) :

Colour :

Quarantine Release Permit Acknowledgment
details :

Date of issue :

Signature_____

Place of issue :

Name_____

Official Seal :

Designation_____

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